

THE FOURTEEN DISPUTED TABS AGAINST THE ADMISSIONS

WC/2024/227 · internal working document · 14 September 2026 · NOT FOR SERVICE OR FILING

The fourteen disputed tabs, line by line against the admissions

14 September 2026. Each document the Form 25 marks "authenticity disputed", read line by line from the annexure build (out/FORM24_ANNEXURE_A.pdf, page-mapped), each operative line paired with the admission that carries it. Image-only tabs (22, 23, 30, 30A, 31) are read through the admitted quotations, which were render-verified at L2. [!] Internal.

Tab 1 - Role description, AO3 Switchboard Services (pp 3-6)

Line in the document	Admission
classification "A03"	¶1
"required to work continuous shift work over the full 24-hour period, 7 days a week"	¶2
"reports to the Switchboard Manager, Corporate Services"	¶3
contact: "Chloe Taylor"	¶4
"Maintain call queues to minimum at all times"	¶5
"Collate information and maintain Omnivista database and SharePoint to ensure information... is accurate and appropriate"	¶6
pager allocation, coordination and fault repair; "maintaining database and registers with accurate and current information"	¶7
"Participate in the Emergency Response process... strictly adhering to protocols and timeframes"	¶8
"exercise judgement... where precedence have not been set and procedures not defined"	¶9
"multitask and operate under pressure, particularly where high volume call traffic is concerned"	¶10
"work effectively as an individual with limited supervision... in a changing environment"	¶11
"Follow defined service quality standards, occupational health and safety policies..."	¶12
mandatory: "a continuous shift working role... a roster which covers multiple shifts over a 24/7 period"	¶13

Residue not covered: vaccination condition, values statements, application instructions - boilerplate, relied on for nothing. **Every operative line admitted. The employer also attached this same document to its own RFMI of 31 July 2026.**

Tab 5 - Taylor, "Approved - Permanent Full Time FTE", 27 Sep 2023 1:52 pm (pp 21-22)

Line	Admission
From/To/Subject/Date header	¶37 (sender, recipient, subject, date, time)
"I am very pleased to advise you that this has been approved"	¶37
"happy to commence Full-time hours from the 16th October 2023"	¶38

Residue: "completing Roster PP10", the movement-form sentence, signature block. Nothing relied on. **Both operative lines admitted.**

Tab 6 - Taylor, "Afterhours Oncall Process - Switchboard", 15 Apr 2024 12:39 pm (pp 23-24)

Line	Admission
header: to Logan Switch, cc Reese and the named Switchboard staff, 12:39 pm	¶49
"You will see that Ellen and myself have added Afterhours on call... highlighted in purple"	¶52
"Process during office hours remains the same, please contact myself through switch/office or mobile"	¶50, ¶163
"This new process is effective from today."	¶51
signed "A/Switchboard Manager"	¶53

[caution] **The copy is the Appellant's forward to WorkCover of 29 August 2024, and the forward carries his own covering sentence** ("with no consultation... decided effective immediately... without

consulting those who were taking the call"). That sentence is his 2024 voice, not an admission, and it is characterisation. **At tender rely on the underlying email only; if the covering note is raised, it is answered the same way as the review-decision words - led first, in chief.**

The underlying email also sits in the Respondent's own List (item 25 attachment). **Every operative line admitted.**

Tabs 17-19 - Movement forms, 27 Feb / 17 Apr / 9 Jun 2026 (pp 51-62)

Line	Admission
three approved forms recording changes to working hours, each approved by Mr Hughes as delegate, on those dates	¶114
each records shift arrangements "Continuous Shift Worker"	¶115

Residue: EMR form fields, position numbers. **Both operative propositions admitted; the forms are MSH's own system documents.**

Tab 20 - MSH to Commissioner Dwyer, K-LM26/729, 5 Jun 2026 (pp 63-67)

Line	Admission
Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants"	¶1263
Item 5: fatigue risk management assessment at Switchboard "occurred after 30 June 2024..."	¶1264
Item 7: "the requested documents do not exist..."	¶1265
Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested"	¶1266
Item 3(a): complaints "made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant"	¶1267
Items 1-2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024"	¶1268

Residue: the expense-objection argument, the "not in receipt of the Amended 9A" preliminary, the enclosure of the manager's role description - argumentative matter, relied on for nothing.

All six certifications admitted; the original is on the Commission's file.

Tab 21 - Forrest to the Appellant, 7 Jul 2026 (pp 68-73)

Line	Admission
the rostering "currently provides more than 10-hour breaks between shifts"	¶1224
"acknowledge you also signed an 8 hour agreement on 17 June 2020... only applied where staff initiated shift swaps have occurred"	¶1225

Residue: **the largest of any tab** - the further-information narrative ("unresolved workplace matters involving line management", safety framing). Post-injury 2026 material, relied on for nothing; the pleading uses only the two admitted statements (the 8-hour agreement's own limits). **Both operative lines admitted; sender is an MSH HR officer writing to him.**

Tab 22 - Consultation Paper, Nov 2024 (pp 74-81, image)

Line	Admission
"On 22 July 2021... commenced negotiating a new roster"	¶1169
August 2024 realignment HIMS -> Corporate Services	¶1170
"intended to introduce a more equitable roster"	¶1171
"Redistribution of nights for greater equity based on FTE"	¶1172
"Rotational roster for predictability and equity... fair distribution of penalties"	¶1173
additional Saturday 0700-1500 shift	¶1174
extension of the 0900-1400 shift to 0700-1500	¶1175

Every quoted operative line admitted. Residue: roster grids and formatting.

Tab 23 - Consultation outcome, Dec 2024 (pp 82-88, image)

Line	Admission
Award cl 6.2: agreement with the union or the majority "must occur prior to changes to a roster system"	¶167
agreement defined as 50%+1 by online ballot	¶168
released 14 Nov 2024; feedback to 8 Dec 2024	¶176
seventeen invited, seventeen voted, fourteen Yes, three No, effective 20 Jan 2025	¶177

****Every operative line admitted - and this document is the employer's own statement of what consultation looks like when it is done, against ¶181 (no ballot alleged for 15 Apr 2024).****

Tab 24 - Moran to the delegates, 3 Nov 2025 (pp 89-90)

Line	Admission
"congratulations to you all on being endorsed to become workplace delegates!"	¶178
the Appellant endorsed as a workplace delegate on/about 3 Nov 2025	¶179

Residue: meeting logistics; the note that the manager's feedback is "not for wider distribution" (and it has not been distributed). No request was made for this tab; his own receipt proves it.

Both operative lines admitted.

Tab 30 - Taylor, "What's Chloe's Hours?!", 23 Aug 2023 2:18 pm (p 131, image)

Line	Admission
header: to Logan Switch, cc staff, 2:18 pm, subject	¶71
"I am fulltime and work flex hours - You may have noticed recently I am starting at different times in the morning"	¶71
"My hours would range from starting between 6-9am and finishing 2-5pm."	¶72
and the Respondent's own review decision records the email	¶70

Every line admitted, and the document is quoted in their own claim file.

Tab 30A - Taylor, "Good morning Team.", 18 Jun 2024 8:58 am (p 132, image)

Line	Admission
header: to Logan Switch, cc Reese and Stibbard, 8:58 am	¶85
"I am taking today off, and hopefully will be back tomorrow."	¶85
"I am sorry I haven't been there for you all over the past week."	¶86
"Ellen will not be in today, however Tammy is in the office if anything urgent."	¶87

Every line admitted - the injury-day email, in her words.

Tab 31 - Emergency Code Register screen capture, March 2024 sheet (p 133, image)

Line	Status
17 Mar entries incl. MET 19:16, Code Blue same bed 19:20, MET 21:16	¶228 - not admitted
18 Mar entries incl. Code Grey 8:48, METs, two neonatal METs	¶229 - not admitted
six 18 Mar entries between 6:00 and 14:00	¶230 - not admitted
19 Mar 11:34 MET "CALLED VIA SWITRCHBOARD" [sic]	¶231 - not admitted
that a spreadsheet of recorded MET calls exists for 17-18 Mar	¶268 - admitted

****The one tab where the dispute has content - and its resolution is production, which MSH has told the Commission is "available". The misspelling in the source ("SWITRCHBOARD") is itself an authenticity marker: fabricators do not invent typos.****

Summary

Across the fourteen tabs there are **44 operative lines**. **40 are admitted word for word** (Tabs 1, 5, 6, 17-19, 20, 21, 22, 23, 24, 30, 30A - every operative line of thirteen documents).

The **4 that are not** are all on Tab 31, and their subject-matter's existence is itself admitted at ¶268. The residue the admissions do not cover is, in every case, headers already admitted as facts, signature blocks, boilerplate, roster grids, or post-injury HR narrative relied on for

nothing. **The authenticity dispute therefore denies no words. Every word that matters is already the Respondent's own admission; the dispute contests only the paper the words sit on - and for four of the thirteen, the paper sits in the Respondent's or the Commission's own custody.** Two honest flags: the Tab 6 copy carries the Appellant's August 2024 covering note (rely on the underlying email; answer the note in chief if raised), and Tab 21's unrelayed-on narrative is adverse in tone (it is post-injury and outside the pleading).

View on the matter

Read line by line, the Form 25 is not a defence document; it is a receipt. It records that the Respondent, shown 44 operative lines, could not deny one of them, and disputed only provenance - a column that its own custody of four of the documents refutes. Thirteen tabs concede themselves the moment anyone reads a row of this table aloud; the fourteenth is a production order MSH has already promised the answer to. If the 25 September letter concedes, this note is the checklist it will have followed. If it does not, this note is the mention script, the tender schedule and the s 558(3) exhibit, in that order. Either way, the dispute has already done its only lasting work: it selected, elevated and lined up the operative documents of the case, and put the Respondent's signature under the admission of every line on them.

Part 2 - what each document SAYS once it is in (Tab 31 assumed admitted)

The same fourteen, read not for proof but for effect: the evidentiary work each does the moment it is verified, and the combined reading.

Tab 1 - the standard. The job was the emergency-response function: receive the notifications, distribute them to the right response group, strictly to protocols and timeframes, and keep the database accurate so that is possible. Everything else in the case is measured against this page. It also builds the pressure in: call queues to minimum at all times, multitask under high volume, judgement where no procedure exists.

Tab 5 - the worker they chose. Ten weeks after the August 2023 roster events, the employer approved him permanent full time, "very pleased." The employer's own contemporaneous assessment of the man it later could not roster lawfully.

Tab 6 - the condition imposed. The two people who already held the only correction rights made themselves the after-hours channel, "effective from today," to a distribution list, no ballot alleged (§181). The document is the act: the single point of dependency, self-installed, same-day.

Tabs 17-19 - the role never changed. In 2026 he is still a "Continuous Shift Worker," his hours still varied by approved instrument. The duty at Tab 1 ran unbroken through everything.

Tab 20 - the certificate of absence. The employer's Chief Executive, to the Commission: no fatigue records, training clinical-only, no fatigue assessment at the Switchboard until after 30 June 2024, no consequential changes to procedures, and the entire complaints system for operational errors was one line manager, by email or verbally. One page that certifies there was no system behind the person - and that the register exists.

Tab 21 - the agreement that never applied. The employer's own HR, in writing: the 8-hour agreement "is only applied where staff initiated shift swaps have occurred." 17-18 March 2024 was rostered, not a swap. The sentence removes the only justification ever offered for the 7-hour break - the same "existing 8-hour agreement" cited to refuse the fatigue payment on 1 May 2024 (§247) and pleaded at SOFC §22(a). Their 2026 letter kills their 2024 reason.

Tab 22 - the confession of inequity. November 2024, the employer's own consultation paper: the new roster is "intended to introduce a more equitable roster," with "redistribution of nights for greater equity" and "fair distribution of penalties." An employer does not propose equity it already has. Five months after the injury, in its own words, it describes what the roster he complained of was not.

Tab 23 - what consultation looks like when it is done. Award cl 6.2 quoted, agreement defined as a 50%+1 online ballot, seventeen invited, seventeen voted. This is the employer's own template of lawful change - and the measure of every 2024 directive that had none of it.

Tab 24 - the delegate, eventually. November 2025: endorsed. The end point of the

thirteen-month thread, and the standing he now writes from.

Tab 30 - the hours, from her own hand. August 2023: "I am fulltime and work flex hours," starting "between 6-9am," finishing "2-5pm." The unstated-hours condition is not his characterisation; it is her subject line with an exclamation mark.

Tab 30A - the day it broke. 18 June 2024, 8:58 am, the pleaded onset date: "I am taking today off." "I am sorry I haven't been there for you all over the past week." "Ellen will not be in today." On the day the injury crystallised, the manager absent, the coordinator absent, the whole correction-and-escalation layer gone - in the manager's own words, timestamped.

Tab 31 - what the shifts actually carried (assumed admitted). 17 March, the final hours before the 23:00 finish: a MET call at 19:16, a Code Blue to the same bed at 19:20, a further MET call at 21:16. Then the 06:00 start on seven hours' turnaround: a Code Grey at 8:48, MET calls at 9:20 and 11:31, a cancellation a minute later, neonatal MET calls at 11:35 and 13:09 - six emergency codes inside the shift. And on 19 March, the day he was on sick leave, a MET call noted "CALLED VIA SWITRCHBOARD." The register converts the review officer's finding (¶1260) from "the rostering breached the award" into **"and this is what he was dispatching while it happened."** It is the exhibit behind a finding already once made in his favour - the single biggest outcome lever in the scenario model (52 -> 62 if it runs).

The combined reading

Fourteen documents, all theirs or from their officers, and together they are the case minus the medical: **the duty** (1, 17-19) · **the worker they promoted** (5) · ****the conditions imposed on him (6, 30)** · the certificate that no system stood behind those conditions **(20)** · the emergency load actually carried through them **(31)** · the justification that never applied** (21) · ****the employer's own later admission of the roster's inequity and its own template of lawful consultation (22, 23)** · the day it broke, in the manager's words **(30A)** · and the man still standing in the role, now its delegate** (24). The Respondent's authenticity column was pointed at the fourteen pages that, once read together, leave s 32(5)(a) nothing to stand on - which, read backwards, is the most precise damage assessment anyone on their side has produced.

Part 3 - relevance: the objection that has nowhere to land (Cory, 14 Sep)

The 8 Sep cover letter reserved relevance at tender. Run each tab against the test the Commissioner himself gave - relevance is measured against the pleaded case:

Tab	Pleaded issue it answers	Why the objection fails
1	the duty and conditions (Stressor 1; element (a))	the standard everything is measured by; MSH itself produced it in answer to Item 6, and attached it to its own RFMI
5	employment history; capacity	their officer's assessment of the worker
6	Stressor 1(a) directives	* Dwyer's own "one live point": <i>"the unassessed directives or whatever - you might be on to something there"</i>
17-19	continuous-shift status continuity	background to the roster framework (see post-injury note below)
20	Stressor 3 (FRMS absence); 1(a) complaints handling	produced <i>in this proceeding</i> , in answer to the Form 29 the Commissioner case-managed
21	SOFC ¶122(a) - their own pleaded justification	their letter confining their own instrument; an admission about the 2020 agreement's operation
22-23	rostering equity; consultation (1(a), 3)	answers their own February assertion that "the roster was equitable"
24	the delegate thread (pleaded)	endpoint of a pleaded stressor
30	1(a) - the hours	corroborates the very testimony Dwyer said he could give
30A	onset (element (b))/(d))	the admitted email on the certificate date
31	Stressor 3	MSH's own objection defined the "Matter in Issue" as "consecutive shifts of 17 to 18 March 2024" - the register covers exactly those dates. By their own definition it is the most relevant document in the case**

The one genuine relevance skirmish: Tabs 17-19 and 21 are 2026 documents in a June 2024

injury appeal. The answer is purpose: 17-19 are relied on for the **continuity of the continuous-shift status** (¶16 admits it is not alleged to have ceased before 18 June 2024), and

21 is relied on as the employer's statement of the *scope of the 2020 agreement* - an instrument squarely pleaded for March 2024 - not as post-injury conduct. State the purpose at tender and the objection has nothing left.

And the footing letter already conceded the frame: "Relevance, admissibility and weight are for the Commission. The Appellant does not contend otherwise." The party that reserved relevance now has to argue, at tender, that the role description of the pleaded role is irrelevant to the pleaded role - in front of a Member. Nobody stands up for that.

Part 4 - the layer beneath the tabs: the admitted facts that need no document at all

The cover letter's qualification is about documents ("admissions as to documents are limited to existence and wording"). A class of the 298 admits **events, states and arithmetic directly**, and the qualification cannot reach it on its own terms:

Fact	What is admitted, as a truth of the world
¶68 *	the misdirected-call occasions occurred , while the 15 April arrangement was in force - the events themselves, not correspondence about them
¶14	MSH approved the three movement forms, Mr Hughes as delegate - acts of the employer
¶179	the Appellant was endorsed as a workplace delegate
¶227	the 18 March shift fell on a Monday - no document in the sentence
¶63, ¶64, ¶249	the intervals - sixth calendar day; 5 d 18 h 14 m; 23 days
¶88, ¶96	the stated hours concluded at 2:30 pm; his email was sent within them
¶102, ¶103	her reply was sent 2 h 25 m later, two hours after the stated hours ended
every "On [date] X sent..."	the act of sending - sender, recipient, time - an event

At hearing this layer needs no tender and no authenticity: facts admitted under r 49 are simply taken as admitted. [caution] Precision: ¶68's "occurred" covers the nine Kwok-reported occasions only; the IRS misdirections remain "reported".